

The Family of Elizabeth Robertson, wife of Sir James Stuart

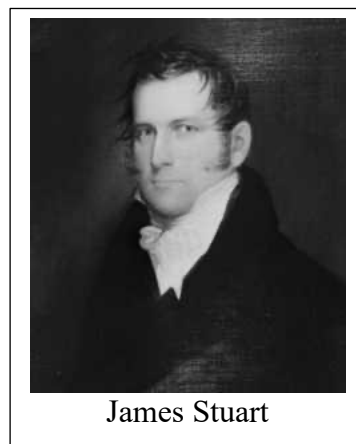
Raymond Perrault

Introduction

James Stuart, one of the most distinguished lawyers in Canada, was born in Fort Hunter, New York on March 2, 1780, the third son of the Reverend John Stuart, DD (1740-1811), a United Empire Loyalist missionary and official of the Church of England in Kingston, and his wife Jane Okill¹. James Stuart was called to the Bar of Lower Canada in 1801, practiced law in Montreal and was first elected to the National Assembly in 1808. He was appointed Solicitor General in 1805, Attorney General in 1825, and Chief Justice of Quebec in 1838. He was made baronet in 1841 and died in Quebec City in 1853. In the 1830s he was one of the leaders of the movement to unite Lower and Upper Canada and was sent to London to plead the case².

On March 14, 1818, in Montreal, Stuart married Elizabeth Robertson, daughter of Alex Robertson and his wife Mary. A.H. Young, biographer of the Stuart family, notes that Alex Robertson was “of the Robertsons of Faskally, Perthshire”^{3 4 5}.

That is all that has been published about Elizabeth Robertson’s ancestry. There are no birth, marriage, or death records for Alex Robertson in the church records in Canada. Though mentioned incidentally, he has no page in the *Dictionary of Canadian Biography*, and no obituary in Montreal papers.



We will show here that Alex Robertson and several siblings came with their parents, Thomas and Katherine Robertson, from Perthshire to Canada via the United States, that he settled in Montreal as a merchant and fur trader in partnership with his brother James, and married Mary McPherson from a family in Trois-Rivières also linked to the fur trade. They had two daughters, Elizabeth and Caroline. Alex died at sea on his way to London on one of his annual trips to buy goods to trade for furs, and François Desrivères, stepson and partner of fur trader James McGill, soon became the tutor of Alex’s minor children.

¹ T. R. Millman, “STUART, JOHN (1740/41-1811),” in *Dictionary of Canadian Biography*, vol. 5, University of Toronto/Université Laval, 2003–, accessed November 27, 2025, https://www.biographi.ca/en/bio/stuart_john_1740_41_1811_5E.html.

² Evelyn Kolish, “STUART, Sir JAMES,” in *Dictionary of Canadian Biography*, vol. 8, University of Toronto/Université Laval, 2003–, accessed May 19, 2024, http://www.biographi.ca/en/bio/stuart_james_8E.html.

³ This appears in the entry in *Burke’s Peerage* on Sir James’ baronetcy.

⁴ A. H. Young, *The Revd. John Stuart, D.D., U.E.L., of Kingston, U.C. and his family: a genealogical study* (Kingston, Ont., [1920])

⁵ All births, marriages and deaths in Quebec are from the Drouin Collection consulted on Ancestry.com

Katherine Robertson's ancestry can be traced back to Alexander Robertson of Struan (d. 1505), the first to bear the name Robertson. Thomas Robertson's is not as clear, but we argue that he is likely descended from the Robertsons of Faskally, as Young claimed.

James Stuart appears in the story as the lawyer who drafted James McGill's will, including the bequest to found McGill University, but who, on behalf of Desrivieres, unsuccessfully fought its implementation. On his wife's behalf, Stuart sued for possession of land in the Ottawa valley Elizabeth and her uncles had bought from another Robertson family. The settlement of this suit, which depended on whether British or Canadian land law applied to land in the Eastern Townships, was ultimately decided in the House of Lords in London and made Canadian legal history.

From Perthshire to Canada

Scottish Birth Records show the following births of children of Thomas Robertson and Katherine Robertson, all at Blair Atholl, Perthshire⁶:

- Neil Robertson, November 4, 1751
- Margaret Robertson, February 23, 1754
- Ann Robertson, December 14, 1756
- Alexander Robertson, March 4, 1760
- James Robertson, March 1, 1763
- Patrick Robertson, August 5, 1770

We will show that this Alexander Robertson is the father of Elizabeth Robertson who married James Stuart.

Thomas and Katherine Robertson emigrated to North America in July 1775 and settled on a farm of 50 acres in New Cambridge, Albany County, New York, between the Hudson River and the Vermont border, about 250 km south of the Canadian border⁷. The Robertsons were loyal to the Crown. Soon after the outbreak of the Revolutionary War, eldest son Neil enlisted in the British forces. Thomas and Alex were imprisoned in Spring 1777 but escaped. The whole family fled to General John Burgoyne who had led the forces that chased the Continental Army from Quebec and came down the Richelieu Valley to take Fort Ticonderoga, where the Robertsons took refuge with the 53rd Regiment. Thomas fought in the Battle of Bennington on September 17, 1777, then fled to Canada with his family, settling first in Johnstown, Upper Canada. For his losses in Cambridge, Thomas claimed £300 compensation. He applied in 1791 for a land grant in Stormont, Upper Canada⁸, where he was living in 1812, when he wrote a letter to a cousin in Scotland in which he says he is in his 80th year⁹.

⁶ Scottish Birth Records, Ancestry.com

⁷ UK, American Loyalist Claims, 1776-1835, Ancestry.com

⁸ Land Petitions of Lower Canada, 1764-1841, Library and Archives Canada.

⁹ Letter from Thomas Robertson to an unnamed cousin, addressed from River Raison, Stormont County, Upper Canada, Sept 29, 1812, in Gordon McGregor, *Red Book of Scotland*, vol.14, p. 463, 2024. See below in the section "The Robertsons of Perthshire".

Thomas's daughter Margaret married John Whiteside of Cambridge, New York. They had six children starting in 1782 and she died there in 1841. Whiteside was a Captain in the Revolutionary Army who participated in the Battle of Bennington^{10 11 12}.

Alex Robertson

The James Stuart archives contain letters written from London between 1792 and 1796 by Alex Robertson to his wife Mary, in Montreal¹³. In the first letter, dated May 2, 1792, posted to Miss McPherson, he addresses her as "Dear Madam". In the subsequent ones, posted to Mrs. A. Robertson, he addresses his wife as "My dear girl". These letters are consistent with a marriage, written in French, at the Protestant Congregation of Trois-Rivières on September 29, 1792, between an Alex Robinson (sic) and Mary McPherson. Another link to Trois-Rivières is in a letter where Alex suggests his wife leave the house for company by going to "Quebec, Trois-Rivières, or wherever". Mary was born in Trois-Rivières on April 5, 1775, the daughter of John McPherson and Marie Cameron.

In 1793, Alex and his brother James established a partnership with Peter and David Grant, two other Scots who were established as clerks of the North West Company (NWC). They sent canoes to Grand Portage (now in Wisconsin), the main trading center of the NWC. The Grants tried to establish their own trading post in the area of the Qu'Appelle River in Saskatchewan, but the experiment failed and although the Robertsons managed to save their investment, the Grants lost theirs¹⁴. The following year, the Robertsons and the Grants partnered with the firm of Simon McTavish and Joseph Frobisher, who controlled at the time half the shares of the NWC¹⁵. McTavish and Frobisher sued the Robertsons and the Grants for failing to deliver in 1794 some trading goods at Grand Portage. From a settlement of this suit on March 5, 1796, letters from Alex Robertson to his wife, and his inventory after death, it appears that Alex imported to Canada goods he acquired in London during annual visits in the winter up to 1796, starting no later than 1792, some of which were then shipped to the northwest to be traded for furs¹⁶. The goods, some of which were declared in the inventory as being stored at Michilimackinac, included knives, axes, guns and ammunition, pots, clothes, beads, and liquor¹⁷. The Robertsons do not appear on a list of NWC shareholders, but they evidently dealt with them. There is no evidence Alex ever traveled to the northwest, but the settlement with McTavish and Frobisher includes free transport for James to Grand Portage in 1796, suggesting that Alex managed the goods and James the trading.

¹⁰ Battle of Bennington, https://en.wikipedia.org/wiki/Battle_of_Bennington

¹¹ George Alexander Whiteside, application to Sons of American Revolution, 2 Feb 1950, Ancestry.com

¹² Margaret was 23 in 1777. Thomas says nothing in his claim about a daughter having stayed behind when the family fled. It is possible, given that her first known child was not born till 1782, that she went with her family and returned later.

¹³ Stuart family fonds, Archives of Ontario, Fonds F-996.

¹⁴ Jean Morrison, "GRANT, PETER," in *Dictionary of Canadian Biography*, vol. 7, University of Toronto/Université Laval, 2003–, accessed October 6, 2024, https://www.biographi.ca/en/bio/grant_peter_7E.html.

¹⁵ North West Company, https://en.wikipedia.org/wiki/North_West_Company.

¹⁶ Although James Robertson is the instigator of Alex's inventory, on behalf of Alex's daughters, Alex was the sole owner of goods and sole party in the considerable debts reported there. Minutes of Louis Chaboillez, notary, Inventory of Alex Robertson, August 21, 1798, Archives des notaires du Québec, Bibliothèque et Archives Nationales du Québec (BAnQ).

¹⁷ The net value of Alex's estate was over £12,000, worth today about £120,000, or US\$150,000.

The *Quebec Gazette* contains in 1798 advertisements announcing the dissolution of the firm of Alexander and James Robertson, following the death of Alexander, asking for creditors to report their claims¹⁸.

WHEREAS the Co-partnership which lately subsisted between Alexander and James Robertson is dissolved by the death of the said Alexander Robertson, all persons indebted to the said Co-partnership are requested to make immediate payment to the Subscriber, and any person having claims on the said Co-partnership are also requested to produce them in order that the same may be discharged.

JAMES ROBERTSON & Co.

Montreal, 1st July, 1798.

Alex's death is reported in Thomas Robertson's 1812 letter to a cousin in Scotland, in which he says that Alex "was lost going to England", but not when¹⁹. An agreement between Mary McPherson and James Robertson, dated May 28, 1798, states that "on the sixteenth day of December last past, this said Alexander Robertson, then on a voyage to England, was unfortunately drowned on the Coast of Cornwall"²⁰. Lloyd's List, which records all UK-related shipping, reports on December 22, 1797, that "The Neriod, Yeoman, from Quebec, is lost near Land's End. Only four Men saved."²¹ The correct name of the ship is The Nereid, with Henry Yeoman as its captain, who died in the wreck. It was carrying oak lumber, which was auctioned, as well as 1272 deer skins, 246 racoon and marten skins, and 32 bear skins, which could well have been being brought by Alex to London.²² The report of the wreck appeared in *The Quebec Gazette* on April 5, 1798²³.

QUEBEC, THURSDAY MORNING APRIL 5.

The December and January Mails brought to New York in His Majesty's Packet Halifax, in 44 days from Falmouth, arrived at the Post Office last night. Our latest papers are of the 12th January, but it appears by the New York papers that the Packet brought accounts down to the 18th, when nothing very important had occurred.

The Elizabeth, Gillespie and the Nereide from this place to London are both lost—the former near Trahe in Ireland, and the latter on the coast of Cornwall. All the crew of the Elizabeth together with the mails were saved, but of the Nereide only four persons escaped.—The Adelphi was captured on her passage by a privateer, but re-taken by His Majesty's ship Cerberus and sent into Portsmouth.

Report of wreck of the Nereid, Quebec Gazette, April 5, 1798

¹⁸ Montreal Gazette, July 16, 1798.

¹⁹ Alex Robertson letters, Stuart family archive.

²⁰ Minutes of Louis Chaboillez, notary, agreement between James Robertson and Mary McPherson, May 28, 1798, Archives des notaires du Québec, BANQ.

²¹ Lloyd's List, 1797-1798, <https://babel.hathitrust.org/cgi/pt?id=mdp.39015073721238&seq=5>

²² Nereid, Historic England Research Records,

https://www.heritagegateway.org.uk/Gateway/Results_Single.aspx?uid=3a77c9a2-ded7-4f3b-8cda-1d78644a3ec6&resourceID=19191

²³ News of the wreck came from London on the packet boat Halifax, which left London on January 19, 1798 and arrived in New York on March 4, after which it was sent by land to Montreal, which apparently took one month. Lloyd's List, January 30, 1798; Quebec Gazette, April 5, 1798.

Alex and Mary had two daughters born in Montreal: Elizabeth, on January 31, 1795, and Catherine Ann, on January 13, 1798. Alex was not present at either baptism, consistent with his being in London on business during the winter of 1795, and having passed away in late 1797. James Robertson signed for his brother in both cases.

Following Alex's death, the Court of King's Bench appointed his brother James as the children's tutor. James agreed to pay Mary MacPherson £1500, plus £100 per year, till the daughters came of age or married²⁴. In return, Mary renounced the share of Alex's estate to which she would be entitled as they were married in community of property.

James Robertson died, unmarried, in Montreal on September 23, 1800, and was succeeded as tutor to Alex's daughters by François Desrivères, who agreed to abide by the terms of the agreement Mary had with James^{25 26}.

François Desrivères, James Stuart, and the suit over the McGill estate

Desrivères was a major figure in Montreal fur trading circles²⁷. Born on September 5, 1764, in Montreal, son of Joseph Amable Trottier Desrivères and Charlotte Guillimin, he became the stepson of merchant James McGill (1744-1813)²⁸ when his widowed mother married McGill in 1776. In 1792, he became a partner in the firm of Todd and McGill, fur traders and shareholders in the NWC²⁹. Desrivères was a landowner on Mount Royal, with McGill and other prominent businessmen including Joseph Frobisher and McGill's partner Isaac Todd^{30 31}.

Upon McGill's death in 1813, Desrivères and his nephew, James McGill Desrivères (1796-1867), became his residuary legatees.

James Stuart was connected to the Robertson family through McGill and Desrivères. Stuart wrote McGill's will and later represented Desrivères in litigation between him and McGill's estate³². While McGill had left Desrivères £23,000 and some lands, he had bequeathed Burnside, his estate on the mountain, and an endowment of £10,000 to the Royal Institution for the Advancement of Learning for the establishment of an English university in Montreal, but only under the condition that if the college were not erected by the 10th anniversary of his death,

²⁴ Minutes of Louis Chaboillez, notary, agreement between James Robertson and Mary McPherson, May 28, 1798, Archives des notaires du Québec, BAnQ.

²⁵ Minutes of Louis Chaboillez, agreement between François Desrivères and Mary Mcpherson, January 3, 1801, Archives des notaires du Québec, BAnQ.

²⁶ James's death is reported in Thomas Robertson's letter.

²⁷ Stanley B. Frost, "DESRIVIÈRES, FRANÇOIS," in *Dictionary of Canadian Biography*, vol. 6, University of Toronto/Université Laval, 2003–, accessed May 21, 2024, http://www.biographi.ca/en/bio/desrivieres_francois_6E.html.

²⁸ J. I. Cooper, "MCGILL, JAMES," in *Dictionary of Canadian Biography*, vol. 5, University of Toronto/Université Laval, 2003–, accessed May 21, 2024, http://www.biographi.ca/en/bio/mcgill_james_5E.html.

²⁹ The North West Company, Wikipedia, https://en.wikipedia.org/wiki/North_West_Company

³⁰ Myron Momryk, "TODD, ISAAC," in *Dictionary of Canadian Biography*, vol. 5, University of Toronto/Université Laval, 2003–, accessed May 20, 2024, http://www.biographi.ca/en/bio/todd_isaac_5E.html

³¹ Stanley B. Frost, *ibid*.

³² Cooper, *ibid*

the endowment would go to the Desrivières³³. The university's board was appointed in 1818, and in 1820, it called upon the Desrivières to relinquish the estate. This they refused to do on the grounds that the Royal Institution had no funds to build a college. The Royal Institution then sued the Desrivières who retained Stuart to represent them. Ultimately, the courts found for the university, but Desrivières took the case to the Privy Council in England, which upheld the lower court decision in 1835, five years after François Desrivières's death³⁴. The rest, as they say, is history.

Neil and Patrick Robertson

Neil and Patrick Robertson appear on a ratification of March 23, 1804, between Daniel Robertson³⁵ on the one hand, and François Desrivières, as tutor of Alex's daughters, and Patrick and Neil Robertson, as universal legatees of James Robertson, now deceased, on the other³⁶. Daniel Robertson had undertaken on August 30, 1797, to pay £1,000 to the then-living Alex and James³⁷. The 1804 agreement transferred this obligation to Alex's and James's heirs. Patrick died in Montreal on March 16, 1808, unmarried. Neil died at Coteau-du-Lac on June 18, 1813, at age 63. He had married Catherine Ann Campbell in Montreal in 1808 and they had a daughter Elizabeth Ann (1809-1823).³⁸

The Daniel Robertson mentioned in the 1804 act is said there to be Lt-Colonel in the Army and living in Chatham, Quebec. This is undoubtedly the Daniel Robertson who was born in Dunkeld, Scotland and participated in the capture of Montreal in 1760 as a surgeon to the 42nd Regiment of Foot³⁹. He participated in military operations in the Caribbean until the Treaty of Paris of 1763, before returning to Montreal. In 1783, he was appointed commander of the trading post at Michilimackinac, and applied for an appointment as Indian agent there, with his son-in-law Daniel Sutherland, James Grant (a partner of Daniel Sutherland in expeditions to Michilimackinac), Frobisher and McTavish, but this was rejected. He returned to Montreal in 1787, where he was officer in the militia and settled on land he purchased in the Ottawa valley. He was elected honorary member of the Beaver Club in 1793.

The relation between Alex, James, Patrick and Neil, is made explicit in a suit by James Stuart and his wife Elizabeth against one Baxter Bowman in 1835 for the recovery of two lots in Buckingham Township. The Crown ceded to John Robertson, son of Daniel, 2,000 acres in Buckingham Township in 1799. Five years later, John having left the province on military duty, his wife, Catherine Christie, sold this property to Patrick Robertson and Alex's minor children, represented by François Desrivières. In 1833, Christie sold two of the lots she had previously

³³ J.M. Desrivières married Caroline, Joseph Frobisher's daughter, in 1820.

³⁴ Cooper, *ibid*

³⁵ No known relation to Alex.

³⁶ Minutes of Louis Chaboillez, Ratification et obligation en faveur des enfants mineurs de Alex Robertson par Daniel Robertson, 23 March 1804, act 6357, BAnQ.

³⁷ No reason for the obligation is given, and it was to be paid off in one year, mortgaged against all of Daniel's assets.

³⁸ He is probably the P. Robertson who in a letter to Mary McPherson dated April 2, 1806 addresses her as "Dear Sister". James Stuart archives.

³⁹ David A. Armour, "ROBERTSON, DANIEL," in *Dictionary of Canadian Biography*, vol. 5, University of Toronto/Université Laval, 2003–, accessed May 22, 2024, http://www.biographi.ca/en/bio/robertson_daniel_5E.html.

sold the Robertsons to Bowman, who started exploiting them. Sir James and his wife sued to recover ownership. The case made Canadian legal history as it hinged on whether English or French property law applied to the townships, that part of Lower Canada not governed by the seigneurial system. The case was not finally resolved until a decision in Stuart's favor by the Court of Appeals in 1853. In a dissenting opinion, Judge Smith of the Superior Court for the District of Montreal, discusses how ownership of the land passed following Patrick's death:

... the purchasers of that deed became possessed as tenants in common, one half vesting in Patrick and one half, or one quarter each, in the minors. That upon Patrick's death, the property devolved by right of inheritance *to his elder brother, Neil*; upon Neil's decease to his daughter Elizabeth Ann, and upon her decease, in 1823, *to her cousin Elizabeth, daughter of Alexander*, then his sole surviving heir, who had previously inherited the share of her sister, Catherine.

This confirms Neil, Patrick and Alex as brothers, but is silent about their relation to John Robertson and his father Daniel.

Mary McPherson's Family

Mary McPherson, Alex Robertson's wife and Sir James Stuart's mother-in-law, was born in Trois-Rivières on April 5, 1775, daughter of John McPherson, an Army officer, and Marie Cameron, both born in Scotland. She died on April 12, 1846, in Quebec City, where she was living in the household of Sir James. Mary was the eldest of 10 children. Her brother Andrew (1783-1847), worked for the NWC as a clerk from about 1805 to 1821, then after the merger with the Hudson Bay Company, as a clerk for them until his death in 1847⁴⁰. Mary's sister, Joan (1798-1870), married Archibald McLean (1791-1865) who was wounded in the War of 1812, became a lawyer and eventually Chief Justice of the Court of Queen's Bench for Upper Canada⁴¹.

James Stuart and Elizabeth Robertson's Descendants

Elizabeth Robertson was of age when she married, so did not need her tutor's permission, but François Desrivères and Michael O'Sullivan, James Stuart's lawyer, were witnesses⁴².

Sir James and Elizabeth had four children, all born in Quebec City:

- Charles James (1824-1901) articulated with his cousin George Okill Stuart (1807-1884) in Quebec City, then studied at Oxford and was called to the Bar in London in 1848. A special law was passed in 1849 allowing him to practice law in Quebec. He acted for his father in several land transactions in Quebec before settling in London, where he died. He inherited his father's title in 1853 but did not marry and the title passed to his brother, Edward.

⁴⁰ Hudson's Bay Company Archives, Archives of Manitoba.

⁴¹ Bruce W. Hodgins, "McLEAN, ARCHIBALD (1791-1865)," in *Dictionary of Canadian Biography*, vol. 9, University of Toronto/Université Laval, 2003–, accessed May 19, 2024, http://www.biographi.ca/en/bio/mclean_archibald_1791_1865_9E.html.

⁴² Alan Dever, "O'SULLIVAN, MICHAEL," in *Dictionary of Canadian Biography*, vol. 7, University of Toronto/Université Laval, 2003–, accessed September 8, 2024, https://www.biographi.ca/en/bio/o_sullivan_michael_7E.html.

- Mary Catherine (1828-1901), settled in London and died there, unmarried.
- Edward Andrew (1832-1903) joined the British Army, fought and was wounded at the battle of Sevastopol in 1855, then in China. He was appointed Lieutenant-General of the Royal Hospital in London from which he retired as Major General. He inherited the baronetcy in 1901 and died in London.
- James (1837-1915) studied at Oxford and became an Anglican clergyman in England where he was vicar in Leicestershire and Sommerset. He inherited the baronetcy in 1903, did not marry, and the title became extinct at his death⁴³.

Sir James also had three known illegitimate children, the subject of a separate article⁴⁴.

The Robertsons in Perthshire

The relationship between Alex, James, Neil and Patrick Robertson, and the names of their parents is established by a letter found in the *Red Book of Scotland* in the entry for Katherine Robertson, who married at Blair Atholl, Perthshire, on July 23, 1750, to Thomas Robertson, in Clunes⁴⁵. “They emigrated to Canada from where Thomas corresponded with members of his extended family back home in Perthshire.” The letter reads:

River Raison, Stormont County, Upper Canada, Sept 29, 1812

Dear Cousin,

I received your much esteemed favour last winter which you sent by Alexr Robertson who sent it here by another person. Duncan Cameron’s son I have not seen. He & John Cameron’s son has settled in Nova Scotia. I am informed my brother-in-law died last year, please let me know how he settled his estate for it was entailed to my eldest son failing heirs of his own body. Neil was talking of going home when I have seen him last for he lives at Montreal, is still unmarried and has a great deal of property. I lost two of my sons since I wrote to you last. Alex was lost going to England & James died a natural death at Montreal & left most of his property to his brothers. Patrick keeps a wholesale store in Montreal unmarried. I am now in my 80th year, much failed. I got a good track of land here, made up a house that cost about £100. I have about 60 acres clear. I have rented it to one Duncan Cuming that came here last year. I cannot look much after anything but thank God I have plenty to make me live comfortably. Be so good as to let me know about my Grandnephews in Tulimet and Strathardle and the poor remains of the Fascally family. Let me know what family your uncle has left & I hope they come on. Give my compliments to Strowan & tell him I am sorry he does not marry. Make my compliments to Achleeks & tell him that I am his Godfather when he was baptized that he ought to write to me. Give my compliments to my Cousins Daniel and James Stewarts for whom I had always a great regard. I am told that Duntanlich sold his estate he has always been a very unfortunate man. Remember me to all my old friends & acquaintances. A great many families from the highlands of Scotland have arrived here. I

⁴³ Young, op cit.

⁴⁴ Raymond Perrault, Les enfants illégitimes de James Stuart et de Marie-Josephte Dufresne, *Mémoires de la Société Généalogique Canadienne-Française*, to appear. English version at https://crperrault.github.io/BPB/articles/abstracts/James_Stuart_illegitimate_children.html

⁴⁵ Gordon McGregor, *The Red Book of Scotland*, 2016, www.redbookofScotland.co.uk

have not seen any of them yet. My compliments to Mrs Robertson and family. I am Dear Cousin, your sincere friend and humble servant. THOS ROBERTSON. PS Do not forget to write me for I will not grudge the postage to the care of Patrick Robertson, Montreal.

Alexander Robertson's Scottish Ancestors

Katherine Robertson's ancestors

The *Red Book of Scotland* shows several generations of Katherine Robertson's ancestry⁴⁶. Her paternal line indicates her family was established in the district of Atholl, going back to the origins of clan Donnachaidh, later Robertson.

Designations such as "James Robertson, 2nd of Auchleeks", indicate that James Robertson was the owner, or laird, of an estate called Auchleeks. The title of laird is a recognized honorific, though not a noble one. It can be inherited through the male line but can also be passed to a buyer of the estate. The laird can also be called by the name of his estate. "Auchleeks" in Thomas Robertson's letter designates the current laird of Auchleeks, in this case Robert Robertson, 8th of Auchleeks.

1. Andrew de Atholia, first ancestor of clan Donnachaidh for whom there is evidence. Lawfully descended in the male line from the Earls of Atholl.
2. Duncan de Atholia, died 1555-1557
3. Robert, son of Duncan of Atholia, married to the daughter and heiress of Fordale,
4. Duncan Robertson of Atholia, died 1 June 1443
5. Robert Rioch Duncanson of Struan, who succeeded to the lands of Struan in the Earldom of Atholl, in reward for his capture of Robert Graham, one of the assassins of James I. He married Margaret, daughter of Sir James Stewart, 1st of Bute, natural son of King Robert II. He died in battle about 1457.
6. Alexander Robertson of Struan, first to assume the name of Robertson. He died in 1505 and was buried at Dunkeld. He married Elizabeth, daughter of Patrick Lyon, Lord Glamis.
7. James Robertson, 1st of Calvine.
8. James Robertson, 1st of Auchleeks, acquired the lands of Auchleeks. He died before 1614.
9. James Robertson, 2nd of Auchleeks, died by 1616.
10. Charles Robertson, 3rd of Auchleeks, married in 1622 to Beatrix, daughter of Alexander Robertson of Inchmagranoch, died before Dec 1649.
11. Duncan Robertson, 4th of Auchleeks, married in 1637 to Jean, daughter of Alexander Robertson of Middle Downie, and died in 1693.
12. Alexander Robertson of Bohespick.
13. Neil Robertson of Bohespick, obtained the lands of Bohespick from his uncle, Donald Robertson of Auchleeks, in 1714. He married at Dull on May 24, 1716 to Anna, daughter of Thomas Fleming of Moness.
14. Katherine Robertson, married Thomas Robertson.

⁴⁶ The facts in this section are drawn from Gordon MacGregor's *Red Book of Scotland*, 2024, vol 14 on the Robertson family and vol 16 on the Stewart family. <https://redbookofscotland.co.uk/>

On her mother's side, Katherine is descended from Fleming of Moness, Menzies of Carse and of Weem, and Stewart of Foss, all from Perthshire.

In the letter, Thomas comments on the death of his brother-in-law, who died "last year", and whose land would have been entailed to Thomas's eldest son, Neil, failing the brother-in-law's having any heirs to his own body. Katherine had four brothers:

1. John Robertson of Bohespick, born 1720, died at the battle of Culloden on 16 Apr 1746, without children. His estate passed to his brother:
2. James Robertson of Bohespick, died without children Dec 3, 1771. His estate passed to his brother:
3. Patrick Robertson of Bohespick, married Helen Stewart, and died without surviving issue before Feb 1801. His estate then passed to his nephew, James Robertson, son of his brother:
4. Duncan Robertson, married 1753 to Janet Robertson, who had a son
 - a. James Robertson, who inherited the lands of Easter Bohespick in 1802. He had a son
 - i. Neil Robertson, who succeeded his father in 1819

The brother-in-law Thomas refers to appears to be Patrick, who died without living sons in 1801, 11 years before Thomas's letter. It seems Duncan died before 1802, as he did not inherit from Patrick. But whatever possible entailment Thomas may have believed to have been established in favour of Thomas' son Neil was superseded in favour of James.

Thomas Robertson's ancestors

The parents of Thomas Robertson are not evident, from Scottish Birth Records or from the current *Red Book of Scotland*. However, the letter provides hints as to his ancestry.

The addressee of the letter is not known, but the fact that it was found in the papers of James Robertson Irvine⁴⁷ suggests that the addressee was an ancestor of Irvine's, about whom the letter indicates that he was a male Robertson alive, along with his wife, in 1812. From Irvine's ancestry in the *Red Book*, this is quite likely James Robertson, 8th of Kindrochit (1739-1823), who married in 1776 to Jean Stewart, daughter of William Stewart, Tacksman at the Mill of Blair Atholl. She died in 1818.

For Thomas to be a cousin of this James Robertson, he needs to be a grandchild of one of James's grandparents. We have found two places where a chronologically plausible missing Thomas could be placed. The first is as a grandchild of James's paternal grandparents, James Robertson, 6th of Kindrochit (1685-) and his wife Beatrice Robertson. James had one known son, Duncan Robertson 7th of Kindrochit, whose children were born in the 1740s, too late to be Thomas's parents. James had a daughter, Janet, who married Robert Robertson of Wester Invernack, and they, and no one else we can identify in the descendance of James Robertson, are plausible candidates for parents of Thomas.

⁴⁷ The document in the archive is a copy of the side of the original containing the message. Unfortunately, the reverse side, which would have shown the addressee, was not copied. Gordon MacGregor, private communication.

However, there is a more compelling descentance from James's maternal grandparents, Helen Robertson, daughter of Alexander Robertson, 7th of Faskally, and her second husband, James Stewart in Clunes. Her first husband, whom she married in 1701, was Charles Robertson, Tacksman of Calvine, who is said to have had descendants, but these are not known. I conjecture that Thomas was one of Charles and Helen's unknown grandchildren. Helen's children from her second marriage married in the 1730s, which is consistent with her children from Charles Robertson having married in the 1720s, and consistent with Thomas's being born in late 1720s.

This identification has the following consequences:

- It relates Thomas to Clunes, as mentioned in his marriage to Katherine Robertson, but via James Stewart in Clunes, his grandmother's second husband.
- It makes Thomas a descendant of Robertson of Faskally, via his grandmother, consistent with Sir James Stuart's entry in *Burke's Peerage*⁴⁸ and its mention by A.H. Young. The "poor remains of Faskally" mentioned in Thomas Robertson's letter would be the natural son of George Robertson, 9th of Faskally. Shortly after George's death in 1776 (the year after Thomas and Katherine emigrated to the US and Canada), the lands of Faskally were sold. The name of the natural son, born in 1755, is not known, but he appears to have been living in 1812.
- It makes Thomas a cousin once removed of Dr. William Robertson (1784-1844), the Montreal physician who was witness to Neil Robertson's marriage in Montreal, as William is the son of James Robertson, 8th of Kindrochit, Thomas's likely correspondent⁴⁹.

Several other people mentioned in the letter can be identified.

“my Grandnephews in Tulimet and Strathardle”

These are probably:

- George Robertson of Easter Auchnagie, b 1763, who was heir to Easter Auchnagie in 1785. He became a hairdresser in London and sold his estate to Dr William Dick in 1786.
- James Robertson b 13 Aug 1768, his brother.

These are sons of James Robertson of Balnacree and Easter Auchnagie, who was baptized at Dull in 1722. He m at Blair Atholl, Helen, d/o Duncan Robertson, 7th of Auchleeks, and d in 1771. Helen would be a first cousin of Katherine Robertson, both granddaughters of Charles Robertson, 6th of Auchleeks.

Although Tullimet, the town, existed in the late 1700s, it was not an estate associated with a family after it was sold by the Aysoun family before 1700. However, Auchnagie [Auchnagay] is in the town/parish of Tullimet and is associated with it earlier as owned by the families Low and Stewart. Tullimet [Tullymet] is a named estate in the parish of Logierait, 12 miles south of Blair Atholl. Strathardle is 4 miles from Tullimet and is associated with Alexander Robertson, 1st of Downie, who is said to have obtained the lands of Downie in Strathardle. George and James are

⁴⁸ Sir Bernard Burke, *A Genealogical and Heraldic History of the Peerage and Baronetage*, 1913, p 1836.

⁴⁹ E. H. Bensley, "ROBERTSON, WILLIAM (1784-1844)," in *Dictionary of Canadian Biography*, vol. 7, University of Toronto/Université Laval, 2003–, accessed December 12, 2024, https://www.biographi.ca/en/bio/robertson_william_1784_1844_7E.html.

significantly younger than Thomas and could have been living when he was writing. It is not clear whether Thomas would have known of George's having sold his estate in 1785, after Thomas emigrated.

"Give my compliments to Struan & tell him I am sorry he does not marry"

This would be Alexander Robertson of Struan, b 24 December 1741, who obtained the restitution of the Struan estate in 1784. He died without children in 1822. He and Thomas were distant cousins, descended from Alexander Robert of Struan (-1505).

"Make my compliments to Achleeks & tell him that I am his Godfather when he was baptized that he ought to write to me."

This would be Robert Robertson, 8th of Auchleeks, bap. at Blair Atholl, on 20 March 1755 who succeeded his father. He is a cousin of both Thomas and Katherine. Robert is 2nd cousin of Thomas's as both are descendants of Alexander Robertson, 7th of Faskally. He is 3rd cousin once removed of Katherine Robertson. Bohepick, from which Katherine descends, is a junior branch of Auchleeks, which is in the parish of Blair Atholl.

I am told that Duntanlich sold his estate he has always been a very unfortunate man

This would be Donald Stewart, 12th of Duntaullich, son of Donald Stewart, 10th of Duntaullich, who married at Dull 19 Dec 1749 Jean Stewart. In 1795, Donald succeeded his brother, Alexander, in the lands of Duntaullich but the estate was so heavily encumbered by debt that he immediately sold it to Alexander Stewart of Bonskeid. Thomas Robertson and Donald Stewart were distant cousins, both descended from Alexander Fleming, 4th of Moness (1557-1663).

Conclusion

James Stuart's wife Elizabeth Robertson was the daughter of Scottish parents, a family heavily involved in the fur trade, starting shortly after the British conquest of Canada. François Desrivières, Elizabeth's tutor after the death of her father, was partner and heir of another Scot, James McGill.

Elizabeth's grandparents, Thomas and Katherine Robertson, left Scotland to settle in New York State in 1775, and moved to Canada as loyalists at the beginning of the American Revolution. Katherine's ancestry in Scotland is well documented, Thomas's less so, though from hints in a letter he sent a cousin in Perthshire in 1812, one can infer that he was probably a descendant of Robertson of Faskally, as claimed in Sir James Stuart's entry in *Burke's Peerage*. He was also a cousin of Dr. William Robertson, who settled in Montreal and became the first dean of the Faculty of Medicine at McGill University.

Several issues remain open. First, is there a link between Elizabeth Robertson's family and that of Lt. Col. Daniel Robertson and his son John, very likely also from Perthshire? What was the reason for the 1797 payment of £1000 from Daniel Robertson to Alex and James Robertson? An inheritance? An investment in their business?

Secondly, is there a relationship between the Robertsons of Montreal and the McPhersons of Trois-Rivières, Alex's wife's family? Mary McPherson was 17 when she married Alex Robertson, and an eldest daughter who had probably not left Trois-Rivières yet. Her father was

an Army officer with no known connections to the fur trade. One possible connection is through the Camerons, the family of Mary McPherson's mother. Thomas Robertson mentions some of them in his letter, as having settled in Nova Scotia.

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